

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

SWEET LIVING, INC.,

Plaintiff,

vs.

CASE NO.: 2026CC001256CCAXES

BRANDI RODGERS,

Defendant.

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**DEFENDANT'S VERIFIED MOTION TO DETERMINE RENT AND REQUEST FOR
EVIDENTIARY HEARING ON THE EXISTENCE OF A TENANCY**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, and pursuant to Florida Statutes §§ 723.063(2) and 51.011, and the Florida appellate authority discussed below, respectfully moves this Honorable Court for an Order determining the amount of rent, if any, required to be deposited into the registry of the court, and for a prior evidentiary hearing on the threshold issue of whether any landlord-tenant relationship exists between Plaintiff and Defendant. In support, Defendant states:

I. PROCEDURAL POSTURE AND TIMELINESS

1. Plaintiff has commenced this action under Florida's summary procedure for mobile home park lot tenancies pursuant to Fla. Stat. §§ 51.011 and 723.061(3).
2. Defendant has been served with the Complaint and is filing this Motion within the five-day responsive window of Fla. Stat. § 51.011 (excluding Saturdays, Sundays, and legal holidays), so as to prevent any waiver of defenses under Fla. Stat. § 723.063(2).
3. Defendant disputes that any rent is owed because Defendant disputes the threshold legal existence of any tenancy between Plaintiff and Defendant.

II. THE DISPUTE: NO LANDLORD-TENANT RELATIONSHIP EXISTS

4. Defendant is not the title-holder of record of any mobile home in Plaintiff's park. No Florida certificate of title has ever been issued in Defendant's name. Pursuant to Fla. Stat. § 319.22(2), Defendant has not acquired marketable title and is not the legal owner of any mobile home.
5. Defendant has never been approved by Plaintiff or the park owner as a tenant pursuant to Fla. Stat. § 723.059. The application for tenancy was never approved.
6. Defendant has never taken possession of the mobile home, never moved into the mobile home, and has never resided within the mobile home park.
7. Pursuant to Fla. Stat. § 723.059(1), "[t]he purchaser of the mobile home may cancel or rescind the contract for purchase of the mobile home if the purchaser's tenancy has not been approved by the park owner 5 days before the closing of the purchase." Defendant

timely exercised that statutory right of rescission by written demand for refund sent by United States certified mail, return receipt requested, in January 2026; the seller signed the return receipt. The contract was therefore rescinded by operation of statute.

8. Accordingly, Defendant is neither a "mobile home owner" nor a "tenant" within the meaning of Chapter 723.

III. THE REGISTRY-DEPOSIT REQUIREMENT IS NOT TRIGGERED — AND, ALTERNATIVELY, EVIDENTIARY HEARING IS REQUIRED FIRST

A. Section 723.063(2) does not apply by its plain text.

Fla. Stat. § 723.063(2) provides:

"In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. ... The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment ..."

The statute by its plain terms speaks to "the mobile home owner" raising the defense of "material noncompliance." Defendant is not the mobile home owner (no certificate of title in her name; see § 319.22(2)). Defendant's defense is not material noncompliance with Chapter 723 by the park; her defense is the threshold absence of any tenancy. Under Florida's rules of statutory construction, the deposit requirement cannot be extended beyond the persons and defenses to which the statute by its own language applies.

B. Florida appellate authority requires an evidentiary hearing before any registry deposit may be ordered where the existence of a tenancy is itself disputed.

Florida District Courts of Appeal have consistently held — in the analogous Chapter 83 registry-deposit context (Fla. Stat. § 83.60(2)) — that a trial court errs by ordering an occupant to deposit rent into the court registry without first holding an evidentiary hearing where the very existence of a residential tenancy is in dispute.

In *Frey v. Livecchi*, 852 So. 2d 896 (Fla. 4th DCA 2003), the Fourth District Court of Appeal reversed a default judgment of eviction where the trial court had ordered the occupants to deposit rent into the registry without first determining whether the occupants were tenants or were instead in possession under a contract for sale. The Court held that the trial court erred by failing to conduct an evidentiary hearing on the existence of the tenancy before requiring the registry deposit, observing that the registry-deposit statute does not apply when the occupancy is not a tenancy under the statute.

In *Grimm v. Huckabee*, 891 So. 2d 608 (Fla. 1st DCA 2005), the First District Court of Appeal reversed a default judgment of eviction where the occupants were in possession under a contract for purchase, holding that the trial court erred in ordering eviction without conducting an evidentiary hearing to resolve the factual dispute over the basis of occupancy.

The same principle applies a fortiori under Chapter 723. The registry-deposit obligation of § 723.063(2) is triggered only when the defendant is in fact a "mobile home owner" under Chapter 723 who is asserting a "material noncompliance" defense. Where, as here, the defendant disputes

the existence of any qualifying status (owner or tenant) at all, the Court should not order any registry deposit without first holding an evidentiary hearing to determine the threshold question.

IV. REQUEST FOR EVIDENTIARY HEARING

Defendant respectfully requests that this Court set an evidentiary hearing on the threshold question of whether any landlord-tenant relationship within the meaning of Chapter 723 exists between Plaintiff and Defendant. The relevant evidence to be presented at that hearing includes, without limitation:

- The Florida certificate of title for the mobile home, showing no transfer of title to Defendant and the "REBUILT" brand and prior-damage notations made by the seller;
- Defendant's written application for tenancy, which Plaintiff never approved;
- Defendant's written demand for rescission and refund of \$18,000.00, sent by United States certified mail, return receipt requested, in January 2026, signed for by the seller;
- Plaintiff's communications (including those of its counsel) acknowledging that Defendant did not reside in, and was not approved as a tenant of, the mobile home park;
- Evidence regarding Plaintiff's screening practices, including a \$250 background-screening fee paid by another prospective purchaser in January 2026 for which no result and no refund was provided, bearing on whether any screening rule has been "properly promulgated" and uniformly applied as required by Fla. Stat. § 723.061(1)(c).

V. ALTERNATIVE: DETERMINATION OF ZERO RENT AND/OR INDIGENCY

9. In the event the Court determines that Defendant is required to deposit any amount into the court registry, Defendant respectfully requests that the Court first determine the correct amount on the merits. The amount alleged by Plaintiff is in error. Defendant did not owe lot rent for December 2025, because the seller (a non-party to this action) paid December 2025 lot rent from the seller's own bank account, and the seller demonstrated that payment to Defendant at the time of the purported sale. As to all months following December 2025, Defendant cannot owe lot rent because (a) she is not the title-holder of the mobile home, and (b) she was never approved as a tenant under § 723.059.
10. Defendant further requests leave to file an Application for Determination of Civil Indigent Status under Fla. Stat. § 57.082. Defendant cannot afford to deposit substantial sums into the court registry.

VI. PRAYER FOR RELIEF

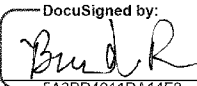
WHEREFORE, Defendant respectfully requests that this Honorable Court:

11. SET an evidentiary hearing, prior to the entry of any registry-deposit order, on the threshold question whether any landlord-tenant relationship within the meaning of Chapter 723 exists between Plaintiff and Defendant;
12. DETERMINE, following the evidentiary hearing, that Defendant is not a "mobile home owner" or "tenant" within the meaning of Fla. Stat. §§ 319.22(2), 723.003, or 723.059, and that the registry-deposit requirement of Fla. Stat. § 723.063(2) does not apply to Defendant;

13. In the alternative, DETERMINE the correct amount of rent, if any, to be deposited into the court registry;
14. GRANT Defendant leave to file an Application for Determination of Civil Indigent Status under Fla. Stat. § 57.082;
15. STAY any default-judgment mechanism of Fla. Stat. § 723.063(2) pending resolution of this Motion; and
16. GRANT such further relief as the Court deems just and proper.

VERIFICATION

Under penalty of perjury, I declare that I have read the foregoing Motion and that the facts stated therein are true and correct to the best of my knowledge and belief.

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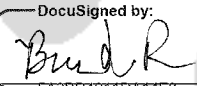
BRANDI RODGERS, Defendant pro se

Dated: 5/21/2026, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 21, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☒ email, ☐ hand delivery to: Keith Wynn, Esq., counsel for Plaintiff, at the address and email of record with the Pasco County Clerk of Court.

Respectfully submitted,

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BRANDI RODGERS, Defendant pro se

13721 94th Avenue

Seminole, FL 33776

Telephone: 727-621-6090

Email: Brandisreallife@gmail.com

EXHIBITS — TO BE ATTACHED AT FILING

Per Fla. Stat. § 723.063(2) (registry-deposit procedure requires the court to determine the rent amount; documentation supporting the dispute should accompany the motion), the following supporting documents must be attached as Composite Exhibit A:

- Exhibit A-1: Florida certificate of title for the Mobile Home (front and back), showing no transfer to Defendant and the REBUILT brand.
- Exhibit A-2: Defendant's written application for tenancy provided by the seller.
- Exhibit A-3: Defendant's written demand for refund/rescission to the seller (January 2026).
- Exhibit A-4: USPS Certified Mail receipt and return-receipt green card signed by the seller.
- Exhibit A-5: Screenshot of the rent-payment portal address provided by the seller.
- Exhibit A-6: Screenshot of the seller's bank account showing December 2025 lot-rent payment.
- Exhibit A-7: Plaintiff's counsel's April 1, 2026 email cancelling the April 2, 2026 hearing.
- Exhibit A-8: Phone notification screenshot of April 2, 2026 reschedule from noon to 1:30 p.m.
- Exhibit A-9: Pasco Clerk of Court docket-history screenshots showing the case disappearing and reappearing as "TBD."